

24PSCV02360 24PSCV02360

County: los-angeles

Division: Civil Law and Motion

Department: H

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Case Number: 24PSCV02360 Hearing Date: July 21, 2026 Dept: H

Palomarez v. Gill, Case No. 24PSCV02360

ORDER ON APPLICATION FOR DEFAULT JUDGMENT

Plaintiff Jessica Palomarez's Application for Default Judgment is DENIED without prejudice.

Background

Plaintiff

Jessica Palomarez ("Plaintiff") alleges as follows: Plaintiff was a tenant of

the residential property located at 3452 Cogswell Road in El Monte

("Property"); during her tenancy, Plaintiff was exposed to numerous substandard

conditions present at the Property.

On July

22, 2024, Plaintiff filed a complaint, asserting causes of action against

Baljit S. Gill ("Gill") and Does 1-100 for: (1) Violation of California Civil

Code § 1942.4, (2) Tortious Breach of the Warranty of Habitability, (3) Private

Nuisance, (4) Business and Professions Code § 17200, et seq., (5) Negligence,

(6) Breach of Covenant of Quiet Enjoyment, (7) Intentional Infliction of Emotional Distress, (8) Negligence Per Se, (9) Violation of Consumer Legal Remedies Act, California Civil Code § 1750, et seq., (10) Unjust Enrichment, and (11) Trespassing.

On

December 13, 2024, Gill's default was entered.

An

Order to Show Cause Re: Default Judgment is set for July 21, 2026.

Discussion

Plaintiff's

Application for Default Judgment is denied without prejudice. The

following defects are noted:

1.

Plaintiff's default prove-up

application is not full and complete, as per California Rules of Court, Rule

3.1800. Plaintiff's "application" appears to be comprised of a 74-page

declaration filed March 25, 2026 and a 2-page proposed judgment received April

1, 2026. Plaintiff has failed to file a brief summary of the case, interest

computations, a memorandum of costs and disbursements, a declaration of

nonmilitary status, a dismissal of all parties against whom judgment is not

sought or an application for separate judgment against specified parties under

Code of Civil Procedure section 579, supported by a showing of grounds for each

judgment and a request for attorney fees.

2.

Paragraph 6 of Plaintiff's proposed

judgment identifies damages as \$5,365,500.00 [FN] (i.e., including \$400,000.00 for "[r]ent paid," plus \$10,000.00 in "[d]amage to

and loss of personal property," plus \$5,500.00 in mitigation costs, plus

\$1,500,000.00 in "[p]hysical injury damages," including "medical expenses, past

and future," plus \$1,550,000.00 in emotional distress damages, plus \$300,000.00

in "[d]amages resulting from Defendants' failure to provide essential

services," plus \$100,000.00 in statutory damages and penalties, plus

\$1,500,000.00 in punitive damages). Plaintiff also seeks \$443,100.00 in

prejudgment interest and \$55,545.00 in attorney's fees. Plaintiff fails to

provide any further details as to how the above amounts were calculated and

does not provide any briefing regarding the basis for attorney's fees.

Additionally, Plaintiff provides no explanation for her representation in

Paragraph 7 of the proposed judgment that \$1,500,000.00 of this judgment "is on

a claim related to medical expenses."

Additionally,

the only monetary amounts set forth in Plaintiff's complaint are as follows:

“[t]he amount of damages sought herein after [sic] is greater than \$25,000”

(Complaint, ¶ 10), Plaintiff rented a room “for \$1,200 per month” (Id.,

¶ 65), Plaintiff has sustained “losses in excess of \$25,000” (Id., ¶

72), the property’s fair market value “was and remains \$0.00 per month” (Id.,

¶ 76), Plaintiff is entitled to statutory damages of \$2,000.00 for each

violation per Civil Code § 1940.2 (Id., ¶ 148), Plaintiff paid \$1,200

per month “[f]rom the onset of the tenancy” (Id., ¶ 186), Plaintiff is

entitled to “special damages, according to Civil Code § 1942.4(b)(1), in an

amount of \$5,000.00 per occurrence” (Prayer, ¶ 1) and that attorney’s fees are

sought “in the amount of \$500.00 per hour” (Prayer, ¶ 6).

“The relief granted to

the plaintiff, if there is no answer, cannot exceed that demanded in the

complaint, in the statement required by Section 425.11, or in the statement

provided for by Section 425.115 . . .” (Code Civ. Proc., § 580, subd. (a).) The

Court does not see anything in the record suggesting that Defendant was served

with a Code of Civil Procedure section 425.115 statement.

3.

Plaintiff provides the Court with

Exhibits 1.0 and 2.0 but fails to authenticate same. Plaintiff has not provided

the Court with any documentation of her medical expenses, “mitigation costs,”

“[d]amages resulting from Defendants’ failure to provide essential services,”

or damages to her personal property.

4.

Paragraph 5 of the proposed judgment

is incomplete as to party information.

Accordingly,

the application is denied without prejudice. Any subsequent default prove-up

application must be full and complete, in and of itself. The Court will not

entertain piecemeal submissions.

[FN] Plaintiff identifies his

damages in Paragraph 38(i) of his declaration as totaling \$3,564,768.00; the

amounts set forth in Paragraph 38(a)-(h), however, total \$5,365,500.00.